

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY QUEENS

Filed on

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LEONARDO MARULANDA,

Index No.

Plaintiff,

Plaintiff designates Queens
County as place of trial

-against-

SUMMONS

CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT and POLICE OFFICER
ROBERT EROSA - SHIELD # 953842,

The basis of venue is the place of
the occurrence of the tort.

Defendants.
-----X

Plaintiff resides at:
5216 73rd Street
Maspeth, NY 10378

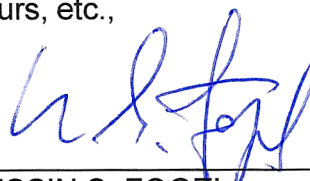
County of Queens

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your answer, or, if the Complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Amended Complaint.

Dated: New York, New York
October 20, 2023

Yours, etc.,



NUSSIN S. FOGEL
Attorney for Plaintiff
299 Broadway - Suite 1818
New York, New York 10007
(212) 385-1122

Defendants' Addresses:

CITY OF NEW YORK

1 Centre Street

New York, NY 10007

NEW YORK POLICE DEPARTMENT

One Police Plaza

New York, NY 10007

POLICE OFFICER ROBERT EROSA - SHIELD # 953842

c/o NEW YORK POLICE DEPARTMENT

866 Command Transit District 20

Briarwood Subway Station

Jamaica, NY 11435

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
LEONARDO MARULANDA,

Plaintiff,

-against-

VERIFIED COMPLAINTCITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT AND POLICE OFFICER ROBERT
EROSA - SHIELD # 953842,Defendants.
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Plaintiff, LEONARDO MARULANDA, for his Verified Complaint by his attorney, NUSSIN S. FOGEL of Law Offices of Nussin S. Fogel, PLLC, respectfully alleges as follows:

1. That, at all times hereinafter mentioned, plaintiff herein was and still is a resident of the County of Queens, City and State of New York.

2. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, was and still is a municipal corporation duly organized under the laws of the State of New York.

3. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, was and still is a municipal agency of defendant, CITY OF NEW YORK.

4. That, at all times hereinafter mentioned, defendant, POLICE OFFICER ROBERT EROSA - SHIELD # 953842, was and still is an employee of defendant, CITY OF NEW YORK.

5. That, at all times hereinafter mentioned, defendant, POLICE OFFICER ROBERT EROSA - SHIELD # 953842, was and still is an employee of defendant, NEW YORK POLICE DEPARTMENT.

6. That, plaintiff herein has complied with all of the conditions precedent to the

bringing of the within action and more particularly, on or about the 3rd day of May, 2023, and within ninety (90) days after the occurrence set forth herein, plaintiff duly served a written Notice of Claim upon the defendants herein, pursuant to law, and was assigned claim number 2023PI014977; that, more than thirty (30) days have elapsed since said Notice of Claim has been served; that said claims remains unadjusted and defendants herein have failed and refused to make any adjustments thereto; that the within action has been commenced within one year and ninety days of the date of the occurrence; and a statutory hearing was held on October 2, 2023.

7. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, operated the subway station known as 90th Street/Roosevelt- #7 train located in Queens, NY.

8. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, owned the 866 Command, Transit Division District 20 located at the Briarwood Subway Station, Jamaica, NY.

9. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, owned the 866 Command, Transit Division District 20 located at the Briarwood Subway Station, Jamaica, NY.

10. That, at all times hereinafter mentioned, defendant, NEW YORK POLICE DEPARTMENT, operated the 866 Command, Transit Division District 20 located at the Briarwood Subway Station, Jamaica, NY.

11. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, owned the Queens County Central Booking Facility located at Kew Gardens, NY.

12. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, operated the Queens County Central Booking Facility located at Kew Gardens, NY.

13. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, operated Riker's Island Correctional Facility located in East Elmhurst, NY.

14. That, at all times hereinafter mentioned, defendant, CITY OF NEW YORK, operated Riker's Island Correctional Facility located in East Elmhurst, NY.

15. That, on or about February 10, 2023 at approximately 3:30 p.m. plaintiff herein was lawfully at subway station known as 90th Street/Roosevelt #7 train, Queens, NY.

16. That, on or about February 10, 2023 at approximately 3:30 p.m. at the aforesaid location, plaintiff herein was unlawfully stopped, detained, arrested and imprisoned by defendant, POLICE OFFICER ROBERT EROSA - SHIELD # 953842.

17. That, at the aforesaid time and place, plaintiff herein was unlawfully arrested and imprisoned by defendants herein at the aforesaid location.

18. That, on or about February 10, 2023 at approximately 3:30 p.m. plaintiff herein remained unlawfully arrested and imprisoned thereat and was thereafter transported to the 866 Command, Transit Division 20th District located in Jamaica, NY where he continued to remain unlawfully arrested and imprisoned.

19. That, subsequent thereto the plaintiff herein was transported from the aforesaid location to the Queens County Central Booking Facility located in Queens, NY where he remained unlawfully arrested, imprisoned and wrongfully charged.

20. That, subsequent thereto, plaintiff herein, was transported to Riker's Island Correctional Facility until February 16, 2023, when plaintiff herein was taken to New York Supreme Court, New York County-Part 62.

21. That, at New York Supreme Court, New York County-Part 62, the court demanded from the assistant district attorney of New York County to explain why the warrant was still active.

22. That, subsequent thereto, within the matter was adjourned to the afternoon of February 24, 2023. On the morning of February 24, 2023, plaintiff herein was informed by phone call from the court clerk of Part 62 that the warrant had been vacated and was directed not to appear.

AS AND FOR A FIRST CAUSE OF ACTION

23. Plaintiff herein repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs "1" through "22" as if the same had been fully set forth herein.

24. That, at the aforesaid times and places defendant, POLICE OFFICER ROBERT EROSA - SHIELD # 953842, failed to protect plaintiff herein and stopped, detained and falsely arrested and imprisoned plaintiff herein or caused plaintiff herein to remain falsely arrested and imprisoned.

25. That, defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, by its agents, servants and employees were careless and negligent in permitting plaintiff herein to become falsely arrested and imprisoned and in failing to exercise the necessary amount of care and caution reasonable under the circumstances to prevent this foreseeable occurrence.

26. That, plaintiff's injuries were due solely to the careless, negligent and reckless conduct on the part of defendants herein without any negligence on the part of plaintiff herein contributing thereto.

27. That, defendants herein negligently disregarded their duty to protect plaintiff herein; negligently failed to prevent plaintiff herein from becoming falsely arrested and imprisoned; negligently took no action to prevent the arrest and imprisonment of plaintiff herein; negligently failed to provide adequate safety and security so as to protect plaintiff herein; negligently failed to provide adequate safeguards and protection so that plaintiff

herein would not be subject to false arrest and imprisonment; and negligently failed to take all reasonable and necessary precautions to prevent the occurrence herein.

28. That, the occurrence herein was occasioned solely and wholly as a result of the negligence of the defendants herein in their ownership, operation, maintenance, control and supervision of the aforesaid premises, facilities, agents, servants and employees thereat; and in their negligent performance and execution of its police, enforcement and investigational duties.

29. That, as a result of the aforesaid occurrence, plaintiff herein suffered serious, severe physical, personal and emotional injuries, medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A SECOND CAUSE OF ACTION

30. Plaintiff herein repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs "1" through "29" as if the same had been fully set forth herein.

31. That, defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, were negligent in the hiring, supervision, training and retention of defendant, POLICE OFFICER ROBERT EROSA - SHIELD # 953842, who caused plaintiff herein to remain wrongfully arrested, detained and imprisoned.

32. That, defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, knew or should have known that, prior to, at subsequent to the time when defendants, CITY OF NEW YORK AND NEW YORK CITY POLICE engaged defendant, POLICE OFFICER ROBERT EROSA - SHIELD # 953842, that he was a person of incompetence and indifference; that he had previously unlawfully and without just cause stopped, detained, questioned, falsely arrested, imprisoned and maliciously prosecuted

persons under similar circumstances claimed herein; and were known by general reputation to be incompetent and indifferent.

33. That, defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, failed and neglected to make any, or appropriate, inquiries with respect to the competence, temperament and character of their employee the defendant, POLICE OFFICER ROBERT EROSA - SHIELD # 953842, when this defendant police officer was employed and engaged by defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT.

34. That, the occurrence herein was occasioned solely and wholly as a result of the negligence of the defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, in the hiring, supervision, training and retention of defendant, POLICE OFFICER ROBERT EROSA - SHIELD # 953842.

35. That, by virtue of the aforesaid, plaintiff herein suffered serious and severe personal and emotional injuries and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS FOR A THIRD CAUSE OF ACTION

36. Plaintiff herein repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs "1" through "35" as if the same had been fully set forth herein.

37. That, at the aforesaid times and places defendant, POLICE OFFICER ROBERT EROSA - SHIELD # 953842, failed to protect plaintiff herein and unjustly, intentionally, unlawfully stopped, detained and falsely arrested plaintiff herein or caused plaintiff herein to become and remain falsely arrested.

38. That, defendant, POLICE OFFICER ROBERT EROSA - SHIELD #

953842, intentionally confined plaintiff herein; that, plaintiff herein was aware of the arrest/confinement; plaintiff herein did not consent to the arrest/confinement; and said arrest/confinement was not otherwise privileged.

39. By virtue of the aforesaid, plaintiff herein was caused to sustain serious and severe personal injuries and incur medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION

40. That, plaintiff herein repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs "1" through "39" as if the same had been fully set forth herein.

41. That, at the aforesaid times and places defendant, POLICE OFFICER ROBERT EROSA - SHIELD # 953842, failed to protect plaintiff herein and unjustly, intentionally, unlawfully and falsely imprisoned plaintiff herein or caused plaintiff herein to be, and remain falsely imprisoned.

42. That, defendant, POLICE OFFICER ROBERT EROSA - SHIELD # 953842, intended to imprison/confine plaintiff herein; plaintiff herein was conscious of the imprisonment/confinement; plaintiff herein did not consent to the imprisonment/confinement; and said imprisonment/confinement was not otherwise privileged.

43. By virtue of the aforesaid, plaintiff herein was caused to sustain serious and severe personal injuries and incur medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A FIFTH CAUSE OF ACTION

44. Plaintiff herein repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs "1" through "43" as if the same had been fully set forth herein.

45. That, at the aforesaid times and places plaintiff herein was maliciously prosecuted by defendants, who under the facts available did not have an objective, good faith belief that the plaintiff was involved in any criminal acts, guilty of any wrong-doing or posed a danger.

46. That, defendants herein caused criminal proceedings to be commenced against the plaintiff herein; that said criminal proceedings were thereafter terminated in favor of the plaintiff herein; that, the criminal proceedings lacked probable cause; and that, the criminal proceedings were brought out of actual malice.

47. By virtue of the aforesaid, the plaintiff herein was caused to sustain serious and severe personal injuries and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A SIXTH CAUSE OF ACTION

48. Plaintiff herein, repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs "1" through "47" as if the same had been fully set forth herein.

49. That, at the aforementioned times and places, plaintiff herein was unlawfully and without just cause stopped, questioned, detained, falsely arrested and imprisoned, and maliciously prosecuted by defendant, POLICE OFFICER ROBERT EROSA - SHIELD # 953842.

50. That, defendant, POLICE OFFICER ROBERT EROSA - SHIELD #

953842, used his position and power which was clearly unlawful and unjust in light of the circumstances existing at the time.

51. That, the improper and unlawful stopping, questioning, detaining, false arrest and imprisonment, and malicious prosecution of plaintiff herein by defendant, POLICE OFFICER ROBERT EROSA - SHIELD # 953842, violated plaintiff's civil rights as afforded under the Constitutions and laws of the United States and the State of New York.

52. That, the acts of defendant, POLICE OFFICER ROBERT EROSA - SHIELD # 953842, were done under the color of law and under the color of authority to be executed justly by defendant herein.

53. That, the failure of defendant, POLICE OFFICER ROBERT EROSA - SHIELD # 953842, in the exercise of his functions and his failure to enforce the laws of the United States and of the City and State of New York was carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences so as to display a conscious disregard for the dangers of harm and injury to the citizens of the City of New York which include plaintiff herein.

54. That, the unlawful stopping, questioning, detaining, false arrest and imprisonment, and malicious prosecution of plaintiff herein by defendant, POLICE OFFICER ROBERT EROSA - SHIELD # 953842, violated plaintiff's rights under the Fourth Amendment of the United States Constitution to be free from unreasonable searches and seizures; the Fifth Amendment of the United States Constitution protecting against the deprivation of life, liberty or property without due process of law; the Eighth Amendment of the United States Constitution to be free from cruel and unusual punishment and the Fourteenth Amendment of the United States Constitution protecting against the deprivation of life, liberty or property without due process of law as well as the civil rights protections

afforded to the plaintiff under the Constitution of the State of New York.

55. By virtue of the aforesaid, plaintiff herein was caused to sustain serious and severe personal injuries and incur medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

AS AND FOR A SIXTH CAUSE OF ACTION

56. Plaintiff herein, repeats, reiterates and re-alleges each and every allegation as set forth in paragraphs "1" through "55" as if the same had been fully set forth herein.

57. That, at the aforementioned times and places, plaintiff herein was improperly and unlawfully stopped, questioned, detained, falsely arrested and imprisoned, and maliciously prosecuted by defendant, POLICE OFFICER ROBERT EROSA - SHIELD # 953842, without just cause or provocation.

58. That, defendant, POLICE OFFICER ROBERT EROSA - SHIELD # 953842, used his position and power which was clearly unlawful and unjust in light of the circumstances existing at the time.

59. That, the improper and unlawful stopping, questioning, detaining, false arrest and imprisonment, and malicious prosecution of plaintiff herein by defendant, POLICE OFFICER ROBERT EROSA - SHIELD # 953842, violated plaintiff's rights under the Fourth Amendment of the United States Constitution to be free from unreasonable searches and seizures, the Fifth Amendment of the United States Constitution protecting against the deprivation of life, liberty or property without due process of law, the Eighth Amendment of the United States Constitution to be free from cruel and unusual punishment and the Fourteenth Amendment of the United States Constitution protecting against the deprivation of life, liberty or property without due process of law as well as the civil rights protections afforded to the plaintiff under the Constitution of the State of New York.

60. That, the acts of defendants herein were done under the color of law and under the color of authority to be executed justly by defendants herein.

61. That, the violation of plaintiff's constitutional rights was caused by the implementation of a custom, policy and/or official act of defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT and/or their deliberate indifference to the stopping, questioning, detaining, false arrest and imprisonment, and malicious prosecution by their police officers of plaintiff herein and other individuals in similar circumstances as those of plaintiff herein.

62. That, the custom, policy and/or official act and/or deliberate indifference of defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, and their failure to enforce the laws of the United States and of the City and State of New York is evidenced by their reckless lack of cautious regard for the rights of citizens including plaintiff herein and exhibited a lack of that degree of due care which prudent and reasonable individuals would show in executing the duties of defendants herein.

63. That such acts, customs and/or policies and/or deliberate indifference thereto were and are known to the defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, including to the supervisors, decision and policy makers of defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT.

64. That the knowledge of said acts, customs and/or policies and/or deliberate indifference thereto by defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, is demonstrated by the thousands of lawsuits filed, litigated, settled and/or tried to verdict by defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, that allege the unlawful stopping, questioning, detaining, assaulting, beating, battery, subjecting to the excessive use of force, false arrest and imprisonment, and

malicious prosecution of individuals alleging incidents identical to those alleged herein as well as the continuous media coverage exposing and highlighting incidents identical to those alleged herein.

65. That, defendants, CITY OF NEW YORK and NEW YORK CITY DEPARTMENT OF CORRECTION, knew of said acts, customs and/or policies and/or were deliberately indifferent thereto and did nothing to prevent and/or created and harbored conditions to permit and allow its police officers, including the named defendant-officers herein, to implement and carry out such acts, customs and/or policies with impunity and without regard for the rights afforded to all citizens including plaintiff herein.

66. That, the failure of defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, in enforcing the laws of the State of New York and the rights afforded under the Constitution of the United States and its implementation of these known policies, customs and/or practices and/or deliberate indifference thereto led, allowed or permitted the unlawful stopping, questioning, detaining, false arrest and imprisonment and malicious prosecution of plaintiff herein, thereby violating plaintiff's civil rights as well as the rights afforded under the Constitutions of the United States and the State of New York and defendants, CITY OF NEW YORK and NEW YORK POLICE DEPARTMENT, is thereby liable to plaintiff herein under 42 U.S.C. §1983 and the Constitution of the United States.

67. That, as a result of the aforesaid violations of plaintiff herein constitutional rights, plaintiff herein has been damaged in a sum of money which exceeds the monetary jurisdiction of all lower courts.

WHEREFORE, plaintiff herein demands judgment against defendants herein in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a First

Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a Second Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a Third Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a Fourth Cause of Action; in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a Fifth Cause of Action and in a sum of money which exceeds the monetary jurisdiction of all lower courts, as and for a Sixth Cause of Action; in a sum of money which exceeds the jurisdiction of all lower courts, as and for a Seventh Cause of Action, together with interest, costs and disbursements herein.

Dated: New York, NY
October 20, 2023

Yours, etc.,

LAW OFFICES OF NUSSIN S. FOGEL, PLLC
Attorney for Plaintiff
Office & Post Office Address
299 Broadway, Suite 1818
New York, NY 10007
(212) 385-1122

ATTORNEY'S VERIFICATION

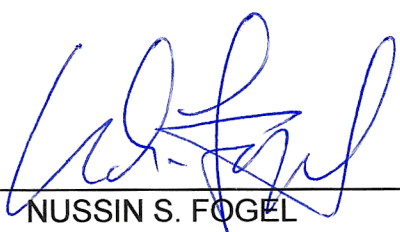
STATE OF NEW YORK)

COUNTY OF NEW YORK)

I, NUSSIN S. FOGEL, the undersigned, an attorney admitted to practice in the Courts of New York State, state that I am a member of LAW OFFICES OF NUSSIN S. FOGEL, PLLC, attorney of record for the plaintiff herein in the within action; I have read the foregoing **Complaint** and know the contents thereof; the same is true to my own knowledge, except as the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by plaintiff, is that plaintiff resides outside of the county where affirmant maintains his office.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows:

Information, records and data contained in affirmant's file and conversations had with the plaintiff herein.



NUSSIN S. FOGEL

I affirm that the foregoing statements are true, under the penalties of perjury

Dated: New York, New York
October 20, 2023